

THE TRUSTEE.

CHAPTER XI.

OF DISCLAIMER AND ACCEPTANCE OF THE TRUST.

HAVING treated of the creation of trusts, whether by the act of a party or by operation of law, we shall next direct our attention to the *estate* and *office* of the *trustee*, and, as a preliminary inquiry, we propose in the present chapter to offer a few remarks upon the subject of the trustee's disclaimer or acceptance of the trust.

*First. Of Disclaimer.*¹

1. **No person compellable to be a trustee.**—It may be laid down as a clear and undisputed rule, that no one is *compellable* to undertake a trust (*a*). “Though a person,” said

(*a*) Robinson v. Pett, 3 P. W. 251, Lowry v. Fulton, 9 Sim. 123, per Sir per Lord Talbot; Moyle v. Moyle, L. Shadwell.
2 R. & M. 715, per Lord Brougham;

¹ *Disclaimer.*—The trustee named may refuse to act even though it should prevent the beneficiary from receiving any of the benefit which the trustee intended for him; Beekman v. Bonsor, 23 N. Y. 298; such a refusal will not destroy the trust, as the court will appoint another trustee; Nicoll v. Ogden, 29 Ill. 323; 81 Am. Dec. 311; Thatcher v. Church, 37 Mich. 264; Johnson v. Roland, 58 Tenn. 203; Nicoll v. Miller, 37 Ill. 387; declining to act as an executor is not a disclaimer of a trust declared in a will; Tainter v. Clark, 13 Met. 224; William v. Cushing, 34 Me. 370; Garner v. Dowling, 11 Heisk. 48; Anderson v. Earle, 9 S. C. 460; this refusal may be in writing, or such a tacit refusal as would make plain the intention to disclaim; Read v. Robinson, 6 Watts. & S. 331; for there is a presumption of acceptance until the contrary appears; Furman v. Fisher, 4 Cold. 626; Penny v. Davis, 3 B. Mon. 313; especially if there is a long lapse of time; Eyrick v. Hetrick, 13 Pa. St. 493; a parol disclaimer is sufficient, even of a trust of real estate. Roseboom v. Mosher, 2 Denio, 61; Hamilton v. Love, 2 Kerr. (N. B.) 243; Thompsons v. Meck, 7 Leigh. 419; but it must be certain and complete;